

450-496 Prior Street, 550 Malkin Avenue  
and 1002 Station Street

**BY-LAW NO. 14566**

**A By-law to amend  
Zoning and Development By-law No. 3575  
to rezone an area to CD-1**

THE COUNCIL OF THE CITY OF VANCOUVER, in public meeting, enacts as follows:

**Zoning District Plan Amendment**

1. This By-law amends the Zoning District Plan attached as Schedule D to By-law No. 3575, and amends or substitutes the boundaries and districts shown on it, according to the amendments, substitutions, explanatory legends, notations, and references shown on the plan attached as Schedule A to this by-law, and incorporates Schedule A into Schedule D of By-law No. 3575.

**Designation of CD-1 District**

2. The area shown within the heavy black outline on Schedule A is hereby designated CD-1 (915).

**Definitions**

3. Words in this by-law have the meanings given to them in the Zoning and Development By-law, except that:

“Medi-Tech Uses” means the use of premises for the research, development, and testing of medical, scientific, or technological products, information, or processes specifically for medical applications which improve or advance the delivery of human health care.

**Uses**

4. Subject to Council approval of the form of development, to all conditions, guidelines and policies adopted by Council, and to the conditions set out in this by-law or in a development permit, the only uses permitted within CD-1 (915) and the only uses for which the Director of Planning or Development Permit Board will issue development permits are:

- (a) Cultural and Recreation Uses;
- (b) Dwelling Uses;
- (c) Institutional Uses;
- (d) Manufacturing Uses;
- (e) Office Uses;
- (f) Medi-tech Uses;

- (g) Retail Uses;
- (h) Service Uses;
- (i) Utility and Communication Uses; and
- (j) Accessory Uses customarily ancillary to the uses permitted in this section.

### **Conditions of Use**

5.1 The design and layout of at least 35% of the total number of dwelling units must:

- (a) be suitable for family housing; and
- (b) include two or more bedrooms.

5.2 No portion of the first storey of a building to a depth of 10.7 m from the front wall of the building and extending across its full width may be used for residential purposes except for entrances to the residential portion.

5.3 All commercial uses and accessory uses must be carried on wholly within a completely enclosed building except for:

- (a) farmers' market;
- (b) neighbourhood public house;
- (c) public bike share;
- (d) restaurant; and
- (e) display of flowers, plants, fruits and vegetables in conjunction with a permitted use.

5.4 The Director of Planning may vary the use conditions of section 4.3 to permit the outdoor display of retail goods, and may include such other conditions as the Director of Planning deems necessary, having regard to the types of merchandise, the area and location of the display with respect to adjoining sites, the hours of operation and the intent of this by-law.

### **Floor Area and Density**

6.1 Computation of floor area must assume that the site area is 9,629 m<sup>2</sup>, being the site area at the time of the application for rezoning evidenced by this by-law, prior to any dedications.

6.2 The floor space ratio for all uses combined must not exceed 4.68.

6.3 The floor area for residential use must not exceed 20,496 m<sup>2</sup>.

6.4 Computation of floor area must include all floors having a minimum ceiling height of 1.2 m, both above and below base surface, measured to the extreme outer limits of the building.

6.5 Computation of floor area must exclude:

- (a) balconies and decks and any other appurtenances which, in the opinion of the Director of Planning, are similar to the foregoing, except that:
  - (i) the total area of these exclusions must not exceed 12% of the floor area being provided for dwelling uses, and
  - (ii) the balconies must not be enclosed for the life of the building;
- (b) patios and roof decks, if the Director of Planning first approves the design of sunroofs and walls;
- (c) where floors are used for off-street parking and loading, the taking on or discharging of passengers, bicycle storage, heating and mechanical equipment, or uses which in the opinion of the Director of Planning are similar to the foregoing, those floors or portions thereof so used that are at or below base surface, except that the exclusion for a parking space must not exceed 7.3 m in length; and
- (d) all residential storage area above or below base surface, except that if residential storage area above base surface exceeds 3.7 m<sup>2</sup> for a dwelling unit, there will be no exclusion for any of the residential storage area above base surface for that unit.

6.6 Computation of floor area may exclude, at the discretion of the Director of Planning or Development Permit Board, amenity areas accessory to a residential use, to a maximum of 10% of the total floor area being provided for dwelling uses.

### **Building Height**

7. Building height, measured from base surface, must not exceed 64.0 m.

### **Horizontal Angle of Daylight**

8.1 Each habitable room must have at least one window on an exterior wall of a building.

8.2 The location of each such exterior window must allow a plane or planes extending from the window and formed by an angle of 50 degrees, or two angles with a sum of 70 degrees, to encounter no obstruction over a distance of 24.0 m.

8.3 Measurement of the plane or planes referred to in section 7.2 must be horizontally from the centre of the bottom of each window.

8.4 The Director of Planning or Development Permit Board may relax the horizontal angle of daylight requirement if:

- (a) the Director of Planning or Development Permit Board first considers all the applicable policies and guidelines adopted by Council; and
- (b) the minimum distance of unobstructed view is not less than 3.7 m.

8.5 An obstruction referred to in section 7.2 means:

- (a) any part of the same building including permitted projections; or

(b) the largest building permitted under the zoning on any adjoining site.

8.6 A habitable room referred to in section 7.1 does not include:

(a) a bathroom; or

(b) a kitchen whose floor area is the lesser of:

(i) 10% or less of the total floor area of the dwelling unit, or

(ii) 9.3 m<sup>2</sup>.

### **Acoustics**

9. A development permit application for dwelling uses must include an acoustical report prepared by a registered professional acoustical engineer demonstrating that the noise levels in those portions of the dwelling units listed below will not exceed the noise levels expressed in decibels set opposite such portions of the dwelling units. For the purposes of this section, the noise level is the A-weighted 24-hour equivalent (Leq24) sound level and will be defined simply as noise level in decibels.

| <b>Portions of dwelling units</b> | <b>Noise levels (Decibels)</b> |
|-----------------------------------|--------------------------------|
| Bedrooms                          | 35                             |
| Living, dining, recreation rooms  | 40                             |
| Kitchen, bathrooms, hallways      | 45                             |

### **Severability**

10. A decision by a court that any part of this by-law is illegal, void, or unenforceable severs that part from this by-law, and is not to affect the balance of this by-law.

### **Force and effect**

11. This by-law is to come into force and take effect on the date of its enactment.

ENACTED by Council this 20<sup>th</sup> day of January, 2026

Signed \_\_\_\_\_ "Ken Sim"  
Mayor

Signed \_\_\_\_\_ "Katrina Leckovic"  
City Clerk

**Schedule A**

